

**Case :-** WRIT - C No. - 22325 of 2021

**Petitioner :-** Kapil Kumar

**Respondent :-** State Of U.P. And 3 Others

**Counsel for Petitioner :-** Vinod Kumar

**Counsel for Respondent :-** C.S.C.,Arti Rajee

**Hon'ble Manoj Kumar Gupta,J.**

**Hon'ble Deepak Verma,J.**

Heard learned for the petitioner and learned Standing Counsel for the State.

The instant writ petition has been filed praying for a mandamus commanding Consumer Grievance Redressal Forum constituted under Clause 7.10 of the Uttar Pradesh Electricity Supply Code, 2005 to decide complaint of the petitioner against certain bills within a specified time and also restrain the second and third respondents from making any recovery in respect thereof till the complaint is decided.

Under Clause 7.10 of the Code, any consumer aggrieved by any action of the licensee, in respect of the matters mentioned in clauses 7.7.1 to 7.7.5 or those covered under Regulations may file a complaint with the licensee. If the licensee fails to settle the complaint, the consumer can approach Consumer Grievance Redressal Forum. The petitioner has availed the said remedy in challenging a bill of an amount of Rs.63,912/-. It is submitted that after filing of the writ petition, the petitioner has deposited Rs.9,400/-, plus Rs.600/- in all Rs.10,000/- and, therefore, recovery of the balance amount be stayed.

Learned counsel for the second and third respondents submitted that the petitioner be directed to deposit the entire remaining amount.

Having regard to the fact that the plea of the petitioner regarding correction of the bill is still to be decided by the Consumer Grievance Redressal Forum, we dispose of the instant writ petition by providing that in case the petitioner deposits 50% of the total remaining amount within three weeks from today, the recovery of the balance amount shall remain stayed till the complaint is decided by the Consumer Grievance Redressal Forum. The petitioner shall file true attested copy of the instant order before the Consumer Grievance Redressal

Forum within two weeks. The Forum shall ensure that the complaint is decided within next six weeks from the date of receipt of the instant order. In case of default on part of the petitioner in depositing the amount, as directed above, it shall be open to the respondents to enforce the recovery in pursuance of the bill in dispute.

Deposit, if made, will be subject to decision of the Consumer Grievance Redressal Forum so that in case the complaint is allowed, the amount that would be deposited, will be liable to be adjusted against future bills.

The petition stands disposed off accordingly.

**(Deepak Verma, J.)    (Manoj Kumar Gupta, J)**

**Order Date :- 4.10.2021**

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